



Procedure No: PS/00413/2021

Appeal No: RR/00423/2022

Examined the appeal for reconsideration filed by ORANGE ESPAGNE, S.A.U. against the resolution issued by the Director of the Spanish Agency for Data Protection in the sanctioning procedure PS/00413/2021, and based on the following

FACTS

FIRST: On 08/06/2022, a resolution was issued by the Director of the Spanish Agency for Data Protection in the sanctioning procedure PS/00413/2021, by virtue of which a fine of 100,000 euros (one hundred thousand euros) was imposed for the violation of the provisions of Article 5.1.c) of Regulation (EU) 2016/679 of the European Parliament and of the Council of 27 April 2016 on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (hereinafter GDPR), an infringement classified in Article 83.5.a) of the GDPR and deemed very serious in Article 72.a) of Organic Law 3/2018, of 5 December, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter, LOPDGDD). This resolution, which was notified to the appellant on 09/06/2022, was issued following the processing of the corresponding sanctioning procedure, in accordance with the provisions of the LOPDGDD, and supplementary to the LPACAP, regarding the processing of sanctioning procedures.

SECOND: As proven facts of the aforementioned sanctioning procedure, PS/00413/2021, the following was recorded:

FIRST. On 18/06/2020, a Complaint-Inspection Record and Request for Procedure for violation of data protection regulations was received by the AEPD, submitted by the complainant indicating that on 22/04/2020, they appeared at the premises of the body D. A.A.A. along with a third party, a delivery person from the company General Logistics Systems Spain, S.A. (hereinafter GLS), stating that the employee of the company intended to deliver a mobile phone sent by the complainant and that the aforementioned company, in order to deliver packages to their recipients, is imposing as a necessary condition to take a photograph of the front and back of their ID card, which the employee of the company takes with their mobile device at the time of delivery. Subsequently, the obtained image is transferred to the company that sent the package.

SECOND. The respondent in a letter dated 19/02/2021 stated that "the legitimacy of this company for the processing of the personal data of Mr. A.A.A. resides in the necessity to execute the contract of which both the subscriber and Orange are part, and which was signed on 20/01/2020, in accordance with the provisions of Article 6.1.b) of the GDPR."

THIRD. A Contract for Individual Clients for mobile communications signed between the complainant and the respondent on 20/01/2020 is on record.

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FOURTH. It is recorded that an email was submitted informing the claimant that, at the time of collecting the order, they must have their valid national identity document available with which they contracted the services with the aforementioned company. It was also informed that, for security reasons, such documentation could be requested by the delivery person who would deliver the order to their home.

FIFTH. The respondent states that on its website, via the link [https://ayuda.orange.es/particulares/movil/mi-movil/mi-pedido/1101-donde-recojo-mipedido-y-que-documentacionnecesito?](https://ayuda.orange.es/particulares/movil/mi-movil/mi-pedido/1101-donde-recojo-mipedido-y-que-documentacionnecesito?utm_source=orange&utm_medium=SMS&utm_term=smsAltaPedido)

[utm_source=orange&utm_medium=SMS&utm_term=smsAltaPedido](https://ayuda.orange.es/particulares/movil/mi-movil/mi-pedido/1101-donde-recojo-mipedido-y-que-documentacionnecesito?utm_source=orange&utm_medium=SMS&utm_term=smsAltaPedido), the conditions for the delivery of orders made by the respondent to its customers are also listed: Where do I collect my order and what documentation do I need? Where can I collect my order?

SIXTH. A document titled "Privacy Annex" has been submitted, through which express consent is

requested to carry out processing of personal data that is excluded from the purpose of executing the signed contract, and the purposes of processing personal data are informed, as well as the categories of data processed, in compliance with Article 13 of the GDPR. The document is signed by the claimant. SEVENTH. The respondent and ICP entered into a service provision contract in Pozuelo de Alarcón (Madrid) whose purpose is the provision of commercial deposit services (storage of materials related to their business, commercial, promotional, technical, and network), logistics services (handling, assembly of the Goods, loading and unloading of the same, transportation of fragmented goods and their distribution, as well as the IT support for the operations carried out), all in accordance with the agreed scope, prices, and terms.

By virtue of this contract, ICP has the status of Data Processor; it also contains a data protection clause, establishing that the processor will carry out the processing of personal data necessary for the correct provision of the services subject to the contract. The types of personal data that will be processed under this contract are identifying data (name and surname, NIF/DNI).

EIGHTH. A Confidentiality Agreement and access to personal data on behalf of third parties for service providers has been submitted, executed in Madrid on 14/01/2018 between ICP, the data controller, and GLS, the data processor, whose purpose is the processing of personal data necessary for the provision of the courier service (storage and custody of data).

NINTH. An Annex has been submitted regarding the contracting of the IdentService (DNI + photo) service for clients of the latter, a complementary service to transportation consisting of the Identification of the Holder of the receipt of the shipments of goods required by the sending company. Its clauses state the following:

FIRST. The purpose of this Annex is to express the requirement for the provision of the delivery service called IdentService (DNI + photo) whose concept is expressed below.

SECOND. The IdentService (DNI + photo) consists of the fact that, once the order for the provision of the parcel delivery service has been managed, at the moment of delivering to the final recipient; the delivery person or courier requests their DNI to carry out the verification and matching of the identity between the person to whom the package is to be delivered and the person indicated by the GLS Client at C/ Jorge Juan, 6

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who must be identified, and such identity must be credibly verified to the company sending the package.

THIRD. The ID card that the recipient must show must be the original document, and a photocopy will not be valid, except in cases where the original report of theft or loss is verified with the Police.

FOURTH. The courier or delivery person, at the time of delivering the goods, will take a photograph of the ID card, with the purpose of providing it along with the POD (Proof of Delivery) to the Client and to establish that there is a correct correlation between the identity of the recipient and the person indicated by the Client for the delivery, and must send both documents to the Client requesting this service.

FIFTH. The Client, by signing this Annex I, expresses their agreement regarding the request for the courier or messenger to take a photo of the ID card of the package recipient, who, if they refuse to show it, will not receive the goods.

SIXTH. The Client, who requests the IdentService (ID card + photo) from GLS or its Agency Network, assumes responsibility for any claims that may be made by the recipients in this regard or arising from this request, as GLS acts merely as an agent of the Client, who is the one requesting and demanding this identity verification action.

The Client is responsible for the handling of the photograph of the recipient's ID card and exempts GLS from any liability that may arise from the practice of the requested IdentService (ID card + photo), committing to adapt its protocols to comply with the General Data Protection Regulation 2016/679 of April 27, 2016, and other applicable regulations in this matter.

THIRD: ORANGE ESPAGNE, S.A.U. (hereinafter the appellant) submitted on 08/07/2022, to this

Spanish Agency for Data Protection, a request for reconsideration, basing it, in summary, on the allegations made throughout the procedure and, furthermore, that the account of the facts contained in the background generated confusion as it had not been verified; the identification document and the processing of the data it contains and the consideration of the processing as excessive; its diligence in identifying the recipient upon delivery of the product; the defenselessness and legal insecurity caused and the absolute disproportionality of the imposed sanction.

LEGAL GROUNDS

I

The Director of the Spanish Agency for Data Protection is competent to resolve this appeal, in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP) and Article 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD).

II

Regarding the statements made by the appellant, reiterating basically the allegations already presented throughout the sanctioning procedure, it should be noted that all of them were already analyzed and dismissed in the Legal Grounds from II to VII, inclusive, of the contested Resolution, as transcribed below:

II

The reported facts are specified in that the complained company, when delivering packages to their recipients through courier companies, imposes as a necessary condition for receipt the taking of a photograph of the front and back of their ID card. The employee of the company takes it with their mobile device at the time of delivery. Subsequently, the obtained image is transferred to the company that sent the package.

Article 58 of the GDPR, Powers, states:

“2. Each supervisory authority shall have all of the following corrective powers indicated below:

(...)

i) impose an administrative fine in accordance with Article 83, in addition to or instead of the measures mentioned in this paragraph, depending on the circumstances of each particular case;

(...)”

Article 5, Principles relating to processing, of the GDPR establishes that:

“1. Personal data shall be:

(...)

c) adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed (‘data minimization’);

(...)”

III

1. The documentation in the file provides clear evidence that the complained party violated Article 5 of the GDPR, principles relating to processing, by imposing as a condition for the delivery of the product the taking of a photograph of the front and back of the ID card; a photograph that is obtained through the application included in the mobile device of the delivery person from the company making the delivery and whose image is subsequently transferred and consulted by the company sending the package.

Article 5 of the GDPR refers to the general principles for data processing. In its paragraph c) it refers to the principle of data minimization, indicating that data must be “adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed.”

From the regulation, we can deduce that only adequate personal data that will be processed can be collected, that is, those that are strictly necessary for the processing; that they can only be collected...

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when they are to be processed and that they may only be used for the purpose for which they were collected, but not for any other objective.

In this same regard, Recital 39 states that:

(39) All processing of personal data must be lawful and fair. For natural persons, it must be entirely clear that personal data concerning them is being collected, used, consulted, or otherwise processed, as well as the extent to which such data is or will be processed. The principle of transparency requires that all information and communication relating to the processing of such data be easily accessible and easy to understand, and that simple and clear language be used. This principle particularly refers to the information provided to data subjects about the identity of the data controller and the purposes of the processing, as well as the additional information to ensure fair and transparent processing with respect to the affected natural persons and their right to obtain confirmation and communication of the personal data concerning them that is subject to processing. Natural persons must be aware of the risks, rules, safeguards, and rights related to the processing of personal data, as well as how to assert their rights in relation to the processing. In particular, the specific purposes of the processing of personal data must be explicit and legitimate, and must be determined at the time of collection. Personal data must be adequate, relevant, and limited to what is necessary for the purposes for which they are processed. This requires, in particular, ensuring that the retention period is strictly limited to a minimum. Personal data should only be processed if the purpose of the processing cannot reasonably be achieved by other means. To ensure that personal data is not retained longer than necessary, the data controller must establish deadlines for its deletion or periodic review. All reasonable measures must be taken to ensure that inaccurate personal data is rectified or deleted. Personal data must be processed in a manner that ensures adequate security and confidentiality of the personal data, including to prevent unauthorized access or use of such data and the equipment used in the processing (the underlining is from the AEPD).

Upon examining the documentation, it is evident that there are other procedures for delivering products through which the identity of the recipient can be verified, confirming that they are the person to whom it is addressed, without the need to photograph their ID using the application contained in the distributor's mobile device and to certify its delivery to the responsible party. The processing of images of the ID is excessive for the purpose of verifying and determining that the recipient to whom the goods are delivered is the same person who entered into the contract.

Article 5.1.c) enshrines the principle of data minimization and implies that the processing of personal data must be adequate and proportional to the purpose it is directed at, clearly determining the purposes for which the data is collected and processed, and restricting the processing of data that is excessive or proceeding to their deletion.

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Likewise, the relevance in the processing of data must occur both at the stage of collection and in the subsequent processing carried out on the same.

Regarding whether the procedure adopted by the respondent is necessary to meet this need or if it is essential to respond to this need, it should be noted that the purpose of the same, as repeatedly asserted by the respondent, is that it provides greater security that the product is indeed delivered to its intended recipient, who is the same person that signed the contract, proving that the delivery is made to the person who actually contracted; although it should also be added that it involves the fight against fraud in this type of products and its economic aspect, as it should not be forgotten that these deliveries in the so-called distance selling have had and have a direct relationship with fraudulent activities, which requires reasonable diligence on the part of such companies at the time of contracting by implementing appropriate measures, verifying through the relevant documentation the identity of the person providing the data, to avoid such behaviors.

In this regard, Recital 47 states that “The processing of personal data strictly necessary for the prevention of fraud also constitutes a legitimate interest of the data controller in question.”

However, the procedure employed by the respondent is relevant when assessing the interference with the fundamental right to data protection and the necessity of achieving the intended purpose. It should be noted that the GDPR limits the use or processing of data by necessity and not by excess; that is, personal data must be adequate, necessary, relevant, and limited to the purpose for which they were collected.

Previously, the Constitutional Court jurisprudence has established that if the objective can be achieved without processing data, the data should not be processed.

On the other hand, this limitation to what is necessary must be evaluated both from a quantitative point of view (volume of data processed) and qualitative (category of data processed). In this same sense, Recital 39 states that "...This requires, in particular, ensuring that its retention period is limited to a strict minimum. Personal data should only be processed if the purpose of the processing cannot reasonably be achieved by other means..."

2. The respondent alleges that the data collected at the time of contracting the product were the ID number and the name of the interested party, which are the same data that are subsequently subject to verification at the time of delivery, which are necessary to fulfill the intended purpose.

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However, such a claim cannot be accepted, as access to the image of the ID card, photographing both the front and back of it, and its processing for the purpose of delivering a product through the mobile terminal of the distributor's delivery person, is considered excessive and not limited to what is necessary in relation to the purposes for which it is processed.

It should be noted that the ID card contains not only the name and surname, its number, and the photograph of the recipient but also incorporates many other data: signature, address, place and date of birth, access key to the information contained therein, date of issuance, expiration date, alphanumeric code, issuing equipment and office, etc., completely additional data that are neither adequate nor relevant nor limited for the purpose of delivering the goods and that to prove that the person collecting the product is the holder who provided the data at the time of contracting, other means that are less harmful and aggressive to the privacy of individuals should be used.

The above, regardless of the fact that the image of the ID card, as stated by the respondent, cannot be retained by the delivery person and is transmitted through an encrypted channel to the logistics company's system, where it is stored on its internal server, to which only a technician assigned to its maintenance has access, and through the ERP consultation module of the computer system, the respondent can access the collected photograph.

Therefore, the processing does not correspond to what is indicated in Recital 39, nor in Article 5.1.c) which states that data must be "adequate, relevant and limited to what is necessary" for the intended purpose.

This diligence that the respondent claims must be exercised at the time of contracting by adopting the necessary precautions and guarantees to uniquely identify the contractor.

Thus, if the contracting is done correctly, there can be no difficulty in providing proof that the recipient of the product is indeed the one who entered into the contract and to whom the product is delivered.

3. The respondent claims that the AEPD intends to qualify as constitutive of an infringement a processing whose absence has been previously sanctioned by the AEPD.

However, such a statement is neither acceptable nor admissible; the respondent must require the identification of the user at the time of contracting the product, as has been established by the judgments and in the sanctioning procedure referred to in its writing.

Certainly, it has nothing to do with the matter at hand to reference Recital 64 of the GDPR mentioned by the respondent, nor those subsequent references related to the right of access of the data subject regulated in Article 15 of the legal text.

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It is at the moment of the contract's execution that the processing of the identifying document of the interested party is deemed necessary so that the respondent can prove that the person with whom they are contracting is indeed who they claim to be and, therefore, this would demonstrate an adequate level of diligence.

And this moment should not be confused with that of the delivery of the product to its recipient, transferring the required diligence to prove that the identity of the contracting party was as claimed, by providing the appropriate documentation to a later moment, that of the delivery of the product to its recipient.

This has been indicated by the AEPD itself, in its resolution of 23/06/2020, in PS/00452/2019, where the affected party claims the processing of their data in the contracting of telephone lines without any cause that legitimizes their processing (Article 6.1 of the GDPR), stating: "The respondent has not provided any document or evidentiary element that demonstrates that the entity, in such a situation, had exercised the minimum required diligence to verify that their interlocutor was indeed the one they claimed to be."

And subsequently, the National Court, in its Judgment of 05/05/2021, Rec. 437/2020 established that: "Regarding the in-person contracting of the line 656586067, it should be reiterated that although a contract is provided, the complainant has not recognized the signature on it as theirs, noting that it does not match the one on their ID, considering that the required diligence obliged them to verify, through the pertinent documentation, the identity of the person providing the data, by presenting the original identifying document and attaching a copy of it to the declaration of intent they wish to validate, as has been reiterated in similar cases."; indicating in the subsequent paragraph:

Therefore, in light of the circumstances presented, it cannot be appreciated that the appealing operator exercised the due diligence to verify the identity of the person they associated in their records with the disputed telephone lines, thus the subjective element of culpability is present. On the other hand, regarding the fact that we are dealing with the fraud of a third party, as we stated in the SAN of October 3, 2013 (Rec. 54/2012) -: "Precisely for this reason, it is necessary to ensure that the person contracting is indeed who they claim to be and appropriate preventive measures must be taken to verify the identity of a person whose personal data will be subject to processing...".

And, in the same sense, in its Judgment of 08/03/2018, Rec 926/2016: "This Chamber therefore considers, as does the Administration, that the minimally required diligence obliged TME to verify, through the pertinent documentation, the identity of the person providing the data, by presenting the original identifying document and attaching a copy of it to the declaration of intent they wish to validate."

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The AEPD itself has also expressed its position in its resolution of 23/06/2020, in PS/00452/2019, where the affected party claims the processing of their data in the contracting of telephone lines without any cause that legitimizes their processing (Article 6.1 of the GDPR): "The respondent has not provided any document or evidentiary element that demonstrates that the entity, in such a situation, had exercised the minimum diligence required to verify that their interlocutor was indeed the one they claimed to be."

However, the cases referred to bear no resemblance to the one we are examining, no matter how much the respondent has an interest in proposing it, as they involve fraudulent contracts, due to a violation of the principle of legitimacy (Article 6.1 of the GDPR) in the first case and the principle of consent (Article 6.1 of the LOPD) in the second, which the respondent must be well aware of since in the sanctioning procedure they were sanctioned by the AEPD and were a party to the appeal in the contentious case that led to the first of the judgments, which dismissed the appeal filed and imposed a

fine of 80,000 euros.

Therefore, the processing of the image of the ID card at the time of delivery of a product contracted remotely is not only considered unlawful, but is also deemed inadequate, not pertinent, nor limited to what is necessary in relation to the purposes for which it is processed, as it should not be forgotten that the ID card contains data that exceeds and has nothing to do with the intended purpose.

The AEPD in the current case is not only not in contradiction with the resolutions issued, but is in accordance with the interpretation that the National Court has been making in its judgments.

This is why the respondent's allegation reiterating that the AEPD sanctioned them for their lack of diligence in not retaining proof of the verification of the identity of the interested party, and in the opening of the current procedure in which they are blamed for the exact opposite, retaining proof of the verification of the identity of the interested party, is not true and cannot be accepted as it does not involve contradictory administrative resolutions nor affect legal certainty, nor generate uncertainty and defenselessness.

Therefore, it is considered that there is a violation of the principle of data minimization, with the respondent being responsible for the infringement of Article 5.1.c) of the GDPR, an infringement classified in Article 83.5.a).

4. Finally, the respondent invoked the violation of the principle of proportionality requesting a reduction in the amount of the sanction.

In this regard, it should be noted that considering that this is an infringement classified as very serious and that in accordance with Article 83 of the GDPR it can be sanctioned, "with administrative fines of up to €20,000,000 or, in the case of a company, an amount equivalent to 4% of the total annual global turnover of the previous financial year, opting for the higher amount."

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an important reduction of the same, in addition to taking into account the circumstances and concurrent valuation criteria. The Supreme Court ruling, Chamber 3, of December 16, 2003 (Rec. 4996/98) already indicated that the principle of proportionality of sanctions requires that "the discretion granted to the Administration for the application of the sanction must be developed by weighing in all cases the concurrent circumstances, in order to achieve the necessary proportionality between the alleged facts and the responsibility required." The principle of proportionality has not been violated, considering the proposed sanction to the entity as proportionate to the proven facts and once the circumstances and criteria that concur are weighed.

Furthermore, the specific circumstances that have been taken into account for the determination of the amount of the sanction are detailed in Ground VII of this resolution.

V

The respondent has expressed their disagreement with the content of the grounds set forth in the Proposal of the procedure, reaffirming what has already been indicated in previous writings.

They argue that they are being sanctioned for displaying an excessive level of diligence in identifying their clients by requiring a copy of the ID card, the only document that, in accordance with Organic Law 4/2015, of March 30, on the Protection of Citizen Security, allows for the verification of the identity and personal data of its holder.

It is true that Article 8.1 of the LOPSC establishes that the ID card "is the only document with sufficient value by itself for the accreditation, for all purposes, of the identity and personal data of its holder" and that the verification by the respondent of the identity of the interested party at the time of delivery of the product to their home is considered lawful both for executing the object of the contract, such as the delivery of the contracted product, and for preventing the commission of fraud. However, what is in question is whether the method, protocol, procedure, or system carried out for this purpose is appropriate; photographing the front and back of the ID card at the time of delivery is deemed excessive, inappropriate, and intrusive to the privacy of individuals, unless it is justified by other reasons, such as that reasonable diligence was not exercised during the contracting process and the corresponding documents were not requested. What need does the respondent have to photograph this document if it is already in their possession?

They have also argued that the processing of images of the ID card of the interested party is not only

considered necessary to prove that the product has been delivered to the person listed as the contractor, but that this criterion has been recognized by the Agency not only in specific resolutions but is also described by the Agency in the 'Plan for Official Inspection on Distance Contracting in Telecommunications Operators and Energy Marketers of the AEPD', where it identifies compliance with regulations in the sector and proposes improvements to make that duty of diligence effective.

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In relation to the 'Inspection Plan on Distance Contracting in Telecommunications Operators and Energy Marketers of the AEPD', it specifically establishes in the section 'Accreditation of the Identity of the Contractor' that prior to contracting and therefore in a matter that is not comparable to what is the subject of the present procedure as already pointed out, it states that "In the stores of some telephone operators, the mobile device purchased can be delivered to customers who have contracted by telephone or telematic means, in which case an official identity document (DNI, NIE, passport) and a banking document that proves that the account on which charges will be made is owned by the contractor is requested.

Deliveries are also made using the postal service that verifies the customer's DNI using a scanning system to collect the copy.

Telephone contracts are usually recorded and in cases of portability, a third entity performs the verification by third parties."

It is true that the processing of images of the DNI in the distance contracting of a product such as a mobile device is not only considered lawful by the Agency itself, but it is also considered that such processing corresponds to the required diligence.

Therefore, such processing is necessary for the respondent to be able to prove the contracting carried out and that it has been done with the required diligence by collecting the supporting documentation thereof.

However, in the present case, we are not facing a case of unlawful processing; the issue at hand is whether the data collected at the time of the delivery of the mobile device has been excessive for the intended purpose.

In the aforementioned Plan, it was already indicated (page 8), in relation to distance contracting in the Alerts section that: "Some companies in the sector have identified different circumstances that may be susceptible to fraud in contracting (high concentration of orders in certain areas, same IP addresses...) and have implemented procedures that allow for alerts regarding these anomalies and determine the probability of fraud, in which case, contracts are usually verified by specialists and additional documentation may be requested from the customer.

And on page 19, in relation to the identity of the contractor, it states that: "Telematic contracts require a signed contract and a copy of documentation (generally DNI and banking) although it has been detected that this documentation does not always exist in the companies.

- All companies have detected a growing concern to guarantee the identity of the contractor and for this reason, they are studying and implementing different solutions in order to avoid as much as possible identity theft, including facial recognition and electronic handwritten signatures."

In this regard, it recommended a series of measures:

- To enhance the guarantees of identification of the contractor prior to the execution of the contract,
- The use of systems with additional guarantees similar to those defined in the PSD2 regulation,
- Biometric data.

Well, none of those recommendations include or refer to the system or procedure implemented by the respondent for the delivery of contracted products, which consists of photographing the DNI using the apps that the delivery person has installed on their mobile device.

However, the Agency itself has considered that this is a complex issue, which must be addressed on a case-by-case basis, taking into account the techniques used in the processing, the interference with

the right to data protection, and that, as long as the European Data Protection Committee or the judicial bodies do not pronounce on the matter, in case of doubt, the interpretation that is most favorable for the protection of the rights of the affected parties should be adopted.

On the other hand, if the contracting carried out by the respondent, for which a copy of the document signed by the contractor has been provided, was correctly identifying (copy of the DNI and banking document showing the account number), verifying that the identity of the recipient and the contractor match should be done without the need to request the copy of the DNI again (photograph of its front and back).

VI

The infringement attributed to the respondent is classified in Article 83.5 a) of the GDPR, which considers that the infringement of "the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9" is sanctionable, according to paragraph 5 of the aforementioned Article 83 of the cited Regulation, "with administrative fines of up to €20,000,000 or, in the case of a company, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount."

The LOPDGDD in its Article 71, Infringements, states that: "Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infringements."

And in its Article 72, it considers for the purposes of prescription, that they are:

"Very serious infringements:

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1. In accordance with the provisions of Article 83.5 of Regulation (EU) 2016/679, very serious infringements that constitute a substantial violation of the articles mentioned therein shall be subject to a limitation period of three years, particularly the following:

(...)

a) The processing of personal data in violation of the principles and guarantees established in Article 5 of Regulation (EU) 2016/679.

(...)

VII

In order to establish the administrative fine that should be imposed, the provisions contained in Articles 83.1 and 83.2 of the GDPR must be observed, which state:

"1. Each supervisory authority shall ensure that the imposition of administrative fines under this article for the infringements of this Regulation indicated in paragraphs 4, 5, and 6 are, in each individual case, effective, proportionate, and dissuasive.

2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure to those provided for in Article 58, paragraph 2, letters a) to h) and j). In deciding on the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

- a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question, as well as the number of data subjects affected and the level of damage and harm they have suffered;
- b) the intentionality or negligence in the infringement;
- c) any measures taken by the controller or processor to mitigate the damage and harm suffered by the data subjects;
- d) the degree of responsibility of the controller or processor, taking into account the technical or organizational measures they have implemented pursuant to Articles 25 and 32;
- e) any previous infringement committed by the controller or processor;
- f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;

- g) the categories of personal data affected by the infringement;
 - h) the manner in which the supervisory authority became aware of the infringement, in particular whether the controller or processor notified the infringement and, if so, to what extent;
 - i) when the measures indicated in Article 58, paragraph 2, have been previously ordered against the controller or processor in relation to the same matter, the compliance with such measures;
 - j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42, and
 - k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement.”
- In relation to letter k) of Article 83.2 of the GDPR, the LOPDGDD, in its Article 76, “Sanctions and corrective measures,” establishes that:

“2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

- a) The continued nature of the infringement.
- b) The link of the infringer's activity with the performance of personal data processing.
- c) The benefits obtained as a result of the commission of the infringement.
- d) The possibility that the conduct of the affected party may have induced the commission of the infringement.
- e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.
- f) The impact on the rights of minors.
- g) Having, when not mandatory, a data protection officer.
- h) The voluntary submission by the controller or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any data subject.”

According to the transcribed provisions, for the purpose of determining the amount of the fine to be imposed in this case for the infringement classified in Article 83.5 of the GDPR for which the respondent is held responsible, an initial assessment considers the following factors to be concurrent: As aggravating circumstances:

- The nature, gravity, and duration of the infringement: the proven facts severely affect a basic principle related to the processing of personal data, such as data minimization; the management carried out by the respondent as a result of the procedure called Identservice, a method of product delivery implemented for the processing of data and its compliance with the GDPR, is questioned, considering it inadequate from the moment of collecting the copy of the ID card both from the front and the back at the time of delivering the package to its recipients. The scope or purpose of the processing operations since a procedure like the one implemented and the importance of the entity is not established to operate in a reduced or local area (Article 83.2, a) of the GDPR).

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The number of potentially affected individuals is significant, as although there is a single claimant, it seems evident that a considerable number of clients of the entity may have been affected since, in accordance with the service provision contract entered into, it was implemented in January 2019; it should also be noted that on 18/06/2020, another complaint regarding identical facts was submitted to the AEPD (Article 83.2, a) of the GDPR).

In this same regard, the conditions for the delivery of products carried out by the respondent to its clients are detailed on its official website, through the following link:

https://ayuda.orange.es/particulares/movil/mi-movil/mi-pedido/1101-donde-recojo-mi-pedido-y-que-documentacion-necesito?utm_source=orange&utm_medium=SMS&utm_term=smsAltaPedido

- The activity of the allegedly infringing entity is linked to the processing of data of both clients and third parties. In the activity of the respondent entity, the processing of personal data of its clients is essential, therefore, given its business volume, the significance of the conduct subject to this complaint

is undeniable (Article 76.2.b) of the LOPDGDD in relation to Article 83.2.k).

- The intentionality or negligence in the infringement since the respondent was fully aware of the procedure implemented for the delivery of products to its end recipients. Also connected with the degree of diligence that the data controller is obliged to exercise in fulfilling the obligations imposed by data protection regulations, the SAN of 17/10/2007 can be cited. Although it was issued before the entry into force of the GDPR, its ruling is perfectly extrapolable to the case we are analyzing. The ruling, after referring to the fact that entities whose activities involve continuous processing of data of clients and third parties must observe an adequate level of diligence, specified that "(...) the Supreme Court has understood that there is negligence whenever a legal duty of care is neglected, that is, when the infringer does not behave with the required diligence. In assessing the degree of diligence, the professionalism or lack thereof of the subject must be especially weighed, and there is no doubt that, in the case now examined, when the activity of the appellant involves constant and abundant handling of personal data, it must be insisted upon the rigor and exquisite care to comply with the legal provisions in this regard" (Article 83.2, b) of the GDPR).

- The continued nature of the infringement since it should not be forgotten that the procedure in accordance with the service provision contract has already been in place for a long time. The infringing conduct is part of the very nature of so-called permanent infringements, in which the consummation extends over time beyond the initial act and continues, violating data protection regulations, throughout the entire period during which the data is subject to processing. In this regard, the rulings of the Audiencia Nacional of 16/09/2008 (rec.488/2006) and of the Supreme Court of 17/04/2002 (rec.466/2000) are pronounced (Article 76.2.a) of the LOPDGDD in relation to Article 83.2.k).

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In the present case, considering the criteria that apply for the assessment of the sanction, a penalty of 100,000 euros is imposed for the violation of Article 5.1.f) of the GDPR, for which the respondent must be held accountable.

III

The appellant in their appeal reiterates what has already been stated throughout the proceedings, additionally arguing that the account of the facts presented generates confusion without any effort made to verify it; that the data collected is not excessive and that the processing of the DNI, the identification document par excellence, is necessary to identify the contractor; their diligence in identifying the recipient upon delivery of the product and the proof thereof; the defenselessness and legal insecurity caused; and the absolute disproportionality of the imposed sanction.

First, the appellant argues that the account of the facts included in Legal Basis II of the resolution is not accurate, asserting that the photograph of the DNI is not taken with the camera of the delivery terminal, but rather through a specific application installed on the terminal, and after the photograph is taken, the data is transmitted via an encrypted channel to the GLS system and is stored on an internal server.

It is true that the aforementioned legal basis begins by stating the facts that are reported and that motivate the complaint, which are also included in the Background, but it is also true that this account should be attributed not to the Agency, but to the complainant, and it does not have to be accurate, as it is a statement from one party.

Thus, in point 1 of Legal Basis III of the Resolution, it begins by stating that:

"1. The documentation in the file provides clear evidence that the respondent violated Article 5 of the GDPR, principles related to processing, by imposing as a condition for the delivery of the product the taking of a photograph of the front and back of the DNI; a photograph that is obtained through the application included in the mobile terminal (device) of the company's delivery person and whose image is subsequently..."

This statement coincides with what the company GLS indicated in its letter dated 02/09/2020 when it states: "The delivery person installs the GLS App on their mobile device and takes a photograph of the DNI using the 'Scan' option offered by the App, so that it allows not to use the device's camera, storing

locally any photograph taken. Additionally, as an extra measure to ensure that no delivery person retains the photos on their device, the possibility of uploading photos from the device's photo gallery is disabled, so if the 'Scan' function of the App is not used, the delivery cannot be verified."

The same company in a letter dated 28/10/2020 stated that "This type of service is mostly contracted for the delivery of mobile phones with the aim of verifying, as required by the telecommunications company, that the contractor is the person who actually receives the package."

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It was also noted in the contested resolution, point 2 of the Legal Basis III, regarding the transmission of photos via encrypted channel to the GLS system that: "The above, regardless of the fact that the image of the ID card, as stated by the respondent, cannot be retained by the delivery person and is transmitted through an encrypted channel to the logistics company's system, where it is stored on its internal server, to which only a technician assigned to its maintenance has access, and through the ERP consultation module of the computer system, the respondent can access the collected photograph.

Therefore, the processing does not correspond to what is indicated in Recital 39, nor in Article 5.1.c) which states that the data must be "adequate, relevant, and limited to what is necessary" for the intended purpose."

- The appellant reiterates that, as has been reported and is evidenced, the purpose of processing the images of the ID card of the interested party is none other than to demonstrate that due diligence has been exercised by verifying that the recipient of the product is indeed the specific interested party. In this sense, data minimization seeks to prevent the data used in their processing from being inadequate, irrelevant, and disproportionate for the purpose for which they are collected and to which they are destined, in accordance with the principles of transparency, respect for privacy, and confidentiality of information relating to the interested party.

The GDPR limits the use of data, the processing of the same, to what is necessary and not excessive; in a word, personal data must be adequate, relevant, and limited to the necessity for which they are obtained.

As noted, the same constitutional jurisprudence has established that if that purpose, if the objective can be achieved without processing data, the data should not be processed.

Regarding the issue raised by the appellant, it was already indicated in the contested resolution in relation to the procedure adopted by the respondent that in the AEPD's Official Inspection Plan on Distance Contracting in Telecommunications Operators and Energy Marketers, in the section 'Verification of the Identity of the Contractor' among the recommended measures for that purpose, there was no inclusion or reference to the system or procedure implemented by the respondent for the delivery of contracted products, which consists of photographing the ID card on the front and back using the app that the delivery person had installed on their mobile device.

In the cited document, it is stated that "In the stores of some telephone operators, the mobile terminal acquired can be delivered to customers who have contracted by telephone or telematic means, in which case the presentation of an official identity document (ID card, NIE, passport) and a banking document that proves that the account on which charges will be made is owned by the contractor is requested.

Deliveries are also made using the postal service, which verifies the customer's ID card using a scanning system to collect the copy."

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In the first case, it is mentioned that presenting the ID card and the bank document is synonymous with

showing, but in no case does it refer to photocopying. And in the case of Correos, scanning is used to obtain a copy of the document, although the appellant forgets that this service is provided by the State-owned company Correos y Telégrafos, referred to as Correos, which has the status of a designated universal operator, guaranteeing universal postal service.

- The appellant also claims regarding the ID card their disagreement with the statements made about the data contained in the aforementioned document being unnecessary and additional.

However, such a claim is equally unacceptable; we all know that the decision on the data contained in and included in the ID card is determined by legal and regulatory provisions; it is the Organic Law on the Protection of Citizen Security and Royal Decree 1553/2005, of December 23, which regulates the issuance of the National Identity Document and its Electronic Signature Certificates, that establish and determine its content, the data, and ultimately the information that the document will contain; therefore, it would be absurd to call this matter into question.

Now, the unnecessary and excessive nature is not predicated on the content of the aforementioned document, on the data included therein; what is questioned and evidenced is that to justify the delivery of a product remotely, the respondent establishes as a system that the recipient must display their ID card and the delivery person must scan it with their mobile device on both the front and back using an app installed on it, and that it be transmitted to the GLS system, being archived on an internal server and that the responsible party can access the photograph via a link to verify that the procedure has been carried out correctly, remaining blocked and not subject to any processing except for requests from authorities, courts, and claims for legal responsibilities.

It is therefore excessive and intrusive to the privacy of individuals that for the aforementioned deliveries, it is required not only to display the ID card but also to ensure its scanning of both the front and back, simply as proof that the product was delivered to its intended recipient.

If the contracting was carried out correctly, with the supporting documents provided that evidenced that the entity had exercised the minimum diligence required to verify that the contractor was who they claimed to be, the justification for the delivery could have been achieved in the same way by transmitting the signature or a photocopy of the contractor's ID card to the delivery person's mobile device for comparison with that of the recipient and the signature on the delivery receipt of the recipient. At the time of delivery, if the data and documents displayed match those transmitted, the delivery could be made; otherwise, it could not.

Or through any of the means, as previously indicated, and which were recommended in the Official Inspection Plan on Distance Contracting in Telecommunications Operators and Energy Marketers of the AEPD or others.

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- The appellant reiterates the previous allegations stating that the existence of contradictory resolutions causes legal uncertainty and generates defenselessness.

As already pointed out in the contested resolution, such a claim is neither acceptable nor admissible; the respondent indicates that in the resolution of 23/06/2020, the Agency sanctioned the appellant for lack of diligence, for not retaining proof of identity verification, and one year later, he is sanctioned for retaining proof of the identity verification of the interested party.

It was already indicated that it is at the moment of the contract signing where the treatment of the interested party's identification document is deemed necessary for the respondent to be able to prove that the person with whom they are contracting is indeed who they claim to be, and therefore, this would demonstrate an adequate level of diligence. The AEPD itself has indicated this in its resolution of 23/06/2020, in the sanctioning procedure PS/00452/2019, and subsequently, the National Court, in its Judgment of 05/05/2021, Rec. 437/2020 established that: "And regarding the in-person contracting of line NUM000, it should be reiterated that although a contract is provided, the complainant has not recognized the signature on it as theirs, noting the lack of correspondence with that on their ID, considering that the Court believes that the required diligence obliged to verify through the pertinent

documentation the identity of the person providing the data, by exhibiting the original of the identification document and attaching a copy of it to the declaration of intent they wish to assert, as has been reiterated in similar cases (SAN of March 8, 2018, Rec. 926/2016, among others).

Therefore, in light of the circumstances presented, it cannot be appreciated that the appellant operator exercised the due diligence required to verify the identity of the person associated in its records with the disputed telephone lines, thus fulfilling the subjective element of culpability.

On the other hand, regarding the fact that we are faced with the fraud of a third party, as we stated in the SAN of October 3, 2013 (Rec. 54/2012): "Precisely for this reason, it is necessary to ensure that the person contracting is indeed who they claim to be, and appropriate preventive measures must be taken to verify the identity of a person whose personal data will be subject to processing..."

In the same vein, the National Court in its Judgment of 08/03/2018, Rec. 926/2016 stated: "This Court therefore considers, as does the Administration, that the minimally required diligence obliged TME to verify, through the pertinent documentation, the identity of the person providing the data, by exhibiting the original of the identification document and attaching a copy of it to the declaration of intent they wish to assert."

The AEPD itself has also pronounced on this matter in its resolution of 23/06/2020, in PS/00452/2019, where the affected party claims the processing of their data in the contracting of telephone lines without any cause that legitimizes their...

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processing (Article 6.1 of the GDPR): "The defendant has not provided any document or evidence that demonstrates that the entity, in such a situation, had exercised the minimum required diligence to verify that its interlocutor was indeed who they claimed to be."

However, these cases bear no resemblance to the one analyzed in the contested resolution, as they involve fraudulent contracts due to a violation of the principle of legitimacy (Article 6.1 of the GDPR) and the principle of consent (Article 6.1 of the LOPD), which the defendant should be aware of since, in the sanctioning procedure (PS/00452/2019), it was sanctioned by the AEPD and was a party to the appeal in the contentious case that led to the first of the judgments, which dismissed the appeal filed and imposed a fine of 80,000 euros.

In the case analyzed, it concerns a violation of the principle of data minimization, as a result of processing the image of the ID card at the time of delivery of a product contracted remotely, considering it inappropriate, irrelevant, and not limited to what is necessary in relation to the purposes for which it is processed.

This is why the AEPD is not only not in contradiction with the resolutions issued but is in accordance with the interpretation that the National Court has been making in its judgments.

It is reiterated that the appellant's allegation, reiterating and repeating that in the resolution of 23/06/2020 the Agency sanctioned the appellant for their lack of diligence, for not retaining proof of identity verification, and one year later they are sanctioned for retaining proof of identity verification of the interested party, is not true and cannot be accepted as it does not involve contradictory administrative resolutions nor does it affect legal certainty, nor generate uncertainty and defenselessness.

These are different resolutions that bear no resemblance to one another.

On the other hand, if what the appellant intends is to prove that the delivery of the product remotely is made to the person of the contractor and their identity was already verified at the time of contracting, evidenced by the supporting documents, retaining the same, and that the minimum required diligence was exercised to verify that the contractor was indeed who they claimed to be, there is no need to scan the copy of the ID card again.

It is consistent that the delivery person required the presentation of the aforementioned document, but proceeding to photocopy and subsequently file it at the expense of possible claims or irregularities is, at the very least, excessive and, as stated in the previous paragraph, may be due to the concern to

guarantee the identity of the contractor by implementing methods to prevent fraud and identity theft. This requirement is not even carried out by the Administration itself with its own administered parties, as established in Article 28.2 of Law 39/2015.

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However, as was already pointed out and recommended in the document Inspection Plan on Distance Contracting in Telecommunications Operators and Energy Marketers of the AEPD, it is important to avoid interference with the right to data protection and to lean towards the interpretation that is most favorable for the protection of the rights of the data subjects.

- The appellant has also alleged the disproportionality of the sanction imposed, taking into account the circumstances and the content of the alleged infringement, which he vehemently denies having committed, and that the existence of circumstances such as the absence of intent, the absence of benefits obtained as a result of the commission of the infringement, the adoption of measures to mitigate the damages caused, and the degree of cooperation with the supervisor have not been appreciated. Furthermore, he expresses his disagreement with the aggravating circumstances applied. It should be noted that both the degree of cooperation with the supervisory authority in the field of data protection, as well as the adoption of measures to mitigate the damages suffered by the data subjects cannot be interpreted as mitigating circumstances of responsibility but rather as obligations that the entity being claimed is required to fulfill in matters of personal data protection; otherwise, they could be considered aggravating circumstances. Additionally, it should be added that the adoption of measures indicates the insufficiency of those established and, in any case, points to certain anomalies in the functioning of the same, of the internal procedures or protocols, which is inappropriate for an entity of this type, a situation that should improve with the measures it claims to have implemented to mitigate the damages caused.

The circumstance described in Article 76.2.c) of the LOPDGDD, by reference to Article 832.k of the GDPR, regarding the benefits obtained as a result of the commission of the infringement, cannot be considered a mitigating factor either.

Regarding this issue, the National Court, Administrative Litigation Chamber, in its ruling of 17/04/2018 (Rec. 254/2017) rejected the claim of the plaintiff, sanctioned by the AEPD, that the absence of benefits should be admitted as a mitigating factor. The third Legal Basis of the ruling states:

“Regarding the absence of benefits, it is necessary to reiterate what was argued by the contested resolution, regarding the fact that Abanca's actions were indeed motivated by the pursuit of economic benefit, so the fact that it was not ultimately obtained cannot serve as a basis for a mitigation of culpability or unlawfulness of its conduct.”

Moreover, the admission of this absence of benefits as a mitigating factor would contradict Article 76.2.c) of the LOPDGDD, since the factual premise on which this circumstance is constructed is exclusively the “obtaining of benefits” as it strictly mentions the “benefits obtained.”

- Regarding the aggravating circumstances, the appellant refers to the absence of intent, which should be taken into account as a mitigating factor of responsibility.

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However, this circumstance is considered an aggravating factor in the responsibility of the appellant in the Proposal. This expression should be understood in the sense of the degree of "responsibility," of "culpability," and this interpretation is corroborated by the National Court, among others in the ruling of 12/11/2007 (Rec. 351/2006), when it states, "The appellant begins by invoking the non-intentionality of his conduct. (...) When there is a lack of diligence, as occurs here, there is culpability, and the conduct undoubtedly deserves a sanctioning reproach, without the fact that there is no fraudulent action

necessarily leading to a further reduction of the sanction when it has been imposed at its minimum level."

The conduct contrary to the norm is the result of a procedure or model through which the respondent develops the activity of delivering its products to customers, violating the principle of data minimization. Furthermore, he expresses his disagreement with the consideration as an aggravating circumstance contained in Article 83.2.a) of the GDPR and the impropriety of the AEPD justifying the sanction based on factual assumptions that have not been analyzed and that are not the subject of the present procedure.

However, it should be noted that sometimes, even if there is only one complainant, the infringement may adopt "systematic" [systemic] connotations and, therefore, may affect, even at different times, other interested parties who have not submitted complaints or reports to the supervisory authority, as occurs in the present case.

As previously mentioned, the same company responsible for the delivery of the product stated in a letter dated 28/10/2020 that "This type of service is largely contracted for the delivery of mobile phones with the aim of verifying, at the request of the telecommunications company, that the contractor is indeed the person who receives the package."

Regarding the principle of proportionality, the A.N. in numerous rulings has indicated that the principle of proportionality cannot be exempt from judicial review, as the margin of appreciation granted to the Administration in imposing sanctions within the legally established limits must be developed by weighing, in any case, the concurrent circumstances, in order to achieve the necessary and due proportion between the alleged facts and the responsibility required, given that any sanction must be determined in accordance with the severity of the infringement committed and according to a criterion of proportionality in relation to the circumstances of the fact. Thus, proportionality constitutes a normative principle that is imposed on the Administration and that reduces the scope of its sanctioning powers.

Well, in accordance with the circumstances present in this case, the resolution does not violate the principle of proportionality in determining the imposed sanction, resulting in a balanced and proportionate response to the severity of the infringement committed and the importance of the facts, without any reasons being appreciated that justify its reduction, especially considering the amount to which such a sanction may rise in accordance with Article 83.5.a) of the GDPR, which provides for administrative fines for the infringement of Article 5.1.c) of the GDPR, "administrative fines of...

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20,000,000 € as a maximum or, in the case of a company, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount.

During the year 2020, the turnover of the respondent amounted to 4,471,100,000 euros (result of the year 21,802,000 euros), so 4% of this amount amounts to 178,844,000 euros.

Considering the cited provisions and others of general application,

The Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DISMISS the appeal for reconsideration filed by ORANGE ESPAGNE, S.A.U. against the resolution of this Spanish Agency for Data Protection issued on 08/06/2022, in the sanctioning procedure PS/00413/2021.

SECOND: TO NOTIFY this resolution to the entity ORANGE ESPAGNE, S.A.U.

THIRD: To warn the sanctioned party that the imposed sanction must be made effective once this resolution becomes executive, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, within the voluntary payment period indicated in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by depositing it into the restricted account No. ES00 0000 0000 0000 0000 0000, opened in the name of the Spanish Agency

for Data Protection at CAIXABANK, S.A. or otherwise, collection will proceed in the executive period. Upon receipt of the notification and once it is executive, if the date of executive status falls between the 1st and 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Finally, it is noted that in accordance with the provisions of Article 90.3 a) LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal.

If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned LPACAP. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

Mar España Martí
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